

Court No. - 29

Case :- WRIT - C No. - 10376 of 2020

Petitioner :- M/S Goyal Product Private Limited And Another

Respondent :- Purvanchal Vidyut Vitran Nigam Limited 3
Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Saumitra Dayal Singh,J.

Put up this matter tomorrow i.e. 26.6.2020 in the additional
cause list.

Order Date :- 25.6.2020

Brijesh

Court No. - 29

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Petitioner :- M/S Goyal Product Private Limited And Another

Respondent :- Purvanchal Vidyut Vitran Nigam Limited 3 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Saumitra Dayal Singh,J.

1. Heard Shri Mayank Kumar Agrawal, learned Advocate for the petitioners and Shri Mahboob Ahmad, learned counsel appearing for respondent nos. 1 to 3.
2. Learned counsel for the petitioner states that respondent nos. 2 and 3 have been wrongly described as officers of Pashchimanchal Vidyut Vitran Nigam Limited whereas they are the officers of Purvanchal Vidyut Vitran Nigam Limited.
3. Shri Mahboob Ahmad, learned counsel for the respondents does not dispute to the said statement.
4. Accordingly, the word 'Pashchimanchal' be replaced with the word 'Purvanchal' in the description of respondent nos. 2 and 3. This be done by the registry itself.
5. The petitioner seeks a writ in the nature of mandamus directing respondent nos. 1 to 3 to grant temporary electricity connection from mixed feeder in accordance with the provisions of Clause 4.10 of the Electricity Supply Code, 2005. The submission is that the petitioner has deposited the requisite fees/charges for grant of electricity connection. However, on a dispute raised by respondent no.4, the Superintending Engineer of the Vidyut Vitran Nigam has refused to grant the connection.
6. Shri Mahboob Ahmad, learned Advocate for the respondents Nigam states that the department is unable to grant connection in view of the order passed by the Chief Judicial Magistrate, Basti on an application filed under Section 156(3) Cr.P.C. moved by respondent no.4.
7. A perusal of the order dated 12.03.2020 passed by the Chief Judicial Magistrate, Basti indicates that only a preliminary enquiry report has been called for from the Superintending Engineer, Purvanchal Vidyut Vitran Nigam.
8. We do not find any justification in the submission of learned counsel for the respondents to deny electricity connection to the petitioner. We, therefore, issue a mandamus commanding the

respondents to provide electricity connection in accordance with the provisions contained under Clause 4.10(e) of the Electricity Supply Code, 2005, provided the petitioner fulfils the other necessary formalities, within a period of one week from today.

9. Issue notice to private respondent no.4, fixing a date in the month of October 2020. Steps be taken within two weeks.

10. List on the date fixed in the notice before the appropriate Bench.

Order Date :- 26.6.2020

AHA

Court No. - 5

Case :- WRIT - C No. - 10376 of 2020

Petitioner :- M/S Goyal Product Private Limited And Another

Respondent :- Purvanchal Vidyut Vitran Nigam Limited 3
Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

Put up in the additional cause list on 19.10.2020.

Order Date :- 14.10.2020

Shahroz

(Dr. Y.K. Srivastava,J.) (S.P. Kesarwani,J.)

Court No. - 5

Case :- WRIT - C No. - 10376 of 2020

Petitioner :- M/S Goyal Product Private Limited And Another

Respondent :- Purvanchal Vidyut Vitran Nigam Limited 3
Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

Put up in the additional cause list on 10.11.2020 before the
appropriate Bench.

Order Date :- 19.10.2020

Shahroz

(Dr. Y.K. Srivastava,J.) (S.P. Kesarwani,J.)

Court No. - 5

Case :- WRIT - C No. - 10376 of 2020

Petitioner :- M/S Goyal Product Private Limited And Another

Respondent :- Purvanchal Vidyut Vitran Nigam Limited 3 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Mahboob Ahmad, Subhash Chandra Tiwari

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

As prayed, **put up on 8.12.2020 in the Additional Cause List**
before the appropriate bench.

Order Date :- 10.11.2020

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